

RECIPROCAL ACCESS AND PARKING EASEMENT AND SERVITUDE AGREEMENT

THIS RECIPROCAL ACCESS AND PARKING EASEMENT AND SERVITUDE AGREEMENT (the “**Agreement**”), is made and entered into as of the 19th day of March, 2020, but effective for all purposes as of the Effective Date (as defined below), by and between **BELLE REALTY OF LAFAYETTE, L.L.C.**, a Louisiana limited liability company (“**Belle**”), and **JD BANK**, a national banking association (“**JD Bank**”).

RECITALS

WHEREAS, Belle is the owner of certain property known as “On The Boulevard Shopping Center” located in Lafayette Parish, Louisiana, said property being more particularly described in **Exhibit A** attached hereto and made a part hereof (the “**Belle Property**”).

WHEREAS, JD Bank is to acquire that certain property located in Lafayette Parish, Louisiana from Whitney National Bank, said property being more fully described in **Exhibit B** attached hereto and made a part hereof (the “**JD Bank Property**”). Said property bears a municipal address of 3600 Johnston Street, Lafayette, Louisiana.

WHEREAS, Belle and Whitney National Bank are the parties to that certain Reciprocal Access and Parking Easement and Servitude Agreement dated December 30, 2004, which is currently in effect.

WHEREAS, upon the date of the closing of the sale of the JD Bank Property from Whitney National Bank to JD Bank (the “**Effective Date**”), the parties desire that JD Bank grant a non-exclusive easement and servitude to Belle over certain portions of the JD Bank Property, and that Belle grant a non-exclusive easement and servitude to JD Bank over certain portions of the Belle Property, all as more particularly described below.

AGREEMENTS

NOW, THEREFORE, in consideration of the mutual agreements contained herein, Belle and JD Bank each agree and covenant, as follows:

1. Grant of Easement to Belle. JD Bank does hereby grant and convey to Belle, its successors and assigns, and Belle’s tenants, lessees, customers, guests, employees and invitees, a non-exclusive easement and servitude over, upon, and across the JD Bank Property more particularly described in **Exhibit B-1** as thirteen (13) JD Bank parking spaces being further identified with “X’s” as shown on the legend on **Exhibit B-1** and outlined in red on **Exhibit B-1** (the “**JD Bank Servitude Area**”), for the purposes of (i) parking of light passenger vehicles, and (ii) ingress and egress for such vehicle and pedestrian passage associated with such parking. This easement and servitude shall commence on the Effective Date and expire at midnight, Lafayette, Louisiana time on December 30, 2034.

2. Grant of Easement to JD Bank. In consideration of the payment of TWO

HUNDRED AND FIFTY DOLLARS AND 00/100 (\$250.00) paid monthly, Belle does hereby grant and convey to JD Bank, its successors and assigns (except as provided hereinafter), and JD Bank's tenants, lessees, customers, guests, employees, and invitees, a non-exclusive easement and servitude over, upon, and across those portions of the Belle Property identified as Right of Passage (shown with slanted line "///") and Belle Parking Spaces (shown with straight lines "=") and shaded in yellow on **Exhibit A-1** (collectively the "**Belle Servitude Area**"), for the purposes of (i) parking of light passenger vehicles in the area designated as "Belle Parking Spaces," (ii) ingress and egress for such vehicle and pedestrian passage associated with such parking, and (iii) ingress and egress for such vehicle and pedestrian passage to and from Johnston Street, Arnould Boulevard, and Marie Antoinette Street, in the area designated as "Right of Passage." This easement and servitude shall commence on the Effective Date and expire at midnight, Lafayette, Louisiana time on December 30, 2034, with the exception that the servitude and easement granted herein by Belle to JD Bank, referenced herein as the Belle Servitude Area, may be cancelled by Belle in the event of the occurrence of either of the following: (i) a change in the use (Bank branch) of the JD Bank Property or (ii) the sale of the JD Bank Property (all or a portion) by JD Bank. In the event of either of the foregoing, Belle shall have the right to terminate and cancel the servitude and easement granted herein by delivering written notice of cancellation to JD Bank.

All monthly payments shall be due on the first (1st) day of each month and shall be made to Belle by mailing the same to 101 Arnould Boulevard, Lafayette, Louisiana 70506 or such other place as Belle shall designate in writing. Notwithstanding the foregoing, Belle shall have the right to require at any time during the Agreement that the monthly payment and any other payments due to Belle be paid via electronic funds transfer, automatic wire transfer, ACH payment transfer, or other automated electronic payment method for deposit into and credit to a Bank account designated in writing by Belle.

3. Existing Rights. The easements and servitudes granted herein are subject to all leases, easements, servitudes and other rights affecting the JD Bank Servitude Area or the Belle Servitude Area of record in the office of the Clerk of Court for Lafayette Parish, Louisiana.

4. Non-Exclusive. The parties acknowledge that the easements and servitudes granted herein are non-exclusive. Without limiting the generality of the foregoing, the parties acknowledge that each party, and each party's respective successors, assigns, tenants, lessees, customers, guests, employees and invitees shall continue to have the right to use such party's respective property and the easement area(s) located thereon.

5. Maintenance of Easement Areas. Each party agrees to keep its respective easement area(s) free from obstruction, trash, and debris. Upon the terms and conditions set forth in Section 11, the parties hereby further agree to share equally (50/50) in the maintenance expenses (repairing, cleaning, and maintaining property and liability insurance) associated with the Right of Passage Area identified on **Exhibit A-1**.

6. Enforcement. Either party may enforce the terms of this Agreement by action in the nature of specific performance, injunctive relief, or damages. In the event of the failure of any party to abide by the terms and provisions of this Agreement and, in the event the other party is required to enforce its rights under this Agreement, then the successful party shall be entitled to

all reasonable attorney fees and court costs in connection therewith.

7. Insurance. Each party shall maintain comprehensive general liability insurance, insuring against damage to person and property, on its respective property; and, each party shall name the other party as an additional insured on such policy (ies) of insurance. Each party shall provide the other with certificates of insurance from time to time evidencing such coverage.

8. Notices. All notices to be given pursuant to this Agreement shall be in writing and shall be deemed given (a) when delivered in person, as long as a written receipt is executed by the recipient or a representative of the recipient, or (b) when received if given by nationally recognized overnight courier service, or (c) sent by being deposited in the United States mail, postage prepaid, registered or certified mail, return receipt requested, addressed to the applicable party as follows:

If to JD Bank:

JD Bank

Paul E. Brummett, II, CFO
1611 Elton Road Jennings, LA 70546

With a copy to:

George Shafer, In-house Counsel
1611 Elton Road Jennings, LA 70546

If to Belle:

Belle Realty of Lafayette, L.L.C. Attn: Edward E. Abdalla, IV
101 Arnould Boulevard Lafayette, Louisiana 70506

With a copy to:

Katherine E. Currie, Esq.
Becker & Associates 201 Rue Beauregard Lafayette,
Louisiana 70508

9. Headings. Headings in this Agreement are for convenience only and shall not be used to interpret or construe its provisions.

10. Indemnity. Belle shall not be liable to JD Bank or any person whomsoever, for any injury to person or damage to property on or about the Belle Servitude Area, caused by the use of the Belle Servitude Area by JD Bank, its successors or assigns or JD Bank employees, agents, guests, patrons, or invitees, or by any other person entering upon the Belle Servitude Area under the expressed or implied invitation of JD Bank, and JD Bank agrees to indemnify Belle and hold it harmless from any lien, liability, cause of action, loss, claim, damage, costs, or expense,

including attorney fees and court costs, suffered or incurred by Belle by reason of any such damage or injury by any such person or property. JD B Bank shall not be liable to Belle or any person whomsoever, for any injury to person or damage to property on or about the JD Bank Servitude Area, caused by the use of the JD Bank Servitude Area by Belle, its successors or assigns or Belle employees, agents, guests, patrons, or invitees, or by any other person entering upon the JD Bank Servitude Area under the expressed or implied invitation of Belle, and Belle agrees to indemnify JD Bank and hold it harmless from any lien, liability, cause of action, loss, claim, damage, costs, or expense, including attorney fees and court costs, suffered or incurred by JD Bank by reason of any such damage or injury by any such person or property.

11. Repair. All maintenance or repair work to be performed in the Belle Servitude Area described in this Agreement shall be performed only by duly-licensed Louisiana contractors to be chosen by Belle. Prior to the commencement of any such maintenance or repair work, Belle shall provide JD Bank with copies of the estimates of the costs and detailed schedules of the scopes of work ("**Repair Work Cost**"), for all such repair or maintenance work to be performed in the Belle Servitude Area, which detailed schedules of the scopes of work shall also include when and where the work will be performed, so that JD B Bank can make any necessary special arrangements for ingress or egress of its customers and employees. The parties further agree that any work to be performed in the Belle Servitude Area pursuant to this Agreement shall not be commenced prior to JD Bank's written pre-approval of its share of the Repair Work Cost. JD Bank shall advise Belle of whether it approves of the Repair Work Cost within five (5) days of receipt of same. In the event JD Bank does not respond to Belle regarding the Repair Work Cost within said five (5) days, said lack of response shall be deemed acceptance and approval by JD Bank of the Repair Work Cost.

In the event JD Bank responds within said five (5) days and does not approve of the Repair Work Cost, the following process shall be utilized by the parties for purposes of determining the Repair Work Cost. JD Bank shall deliver to Belle specific written reasons for its non-approval including a detailed statement of its objections ("**Objection Letter**") and Belle shall within five (5) days after receipt of the Objection Letter resubmit the proposal in a manner that responds to the Objection Letter. JD Bank shall within five (5) days of its receipt of the response letter notify Belle of its approval or disapproval of the terms of the response letter. If JD Bank continues to disapprove then the following procedure shall be undertaken by the parties:

- a. JD Bank shall appoint a duly licensed contractor to render a second estimate of the Repair Work Cost, as set forth above. If the two (2) estimates provided by Belle's and JD Bank's duly licensed contractors are within ten percent (10%) of each other, Belle's contractor's Repair Work Cost shall be used and shared equally between the Parties. If the two (2) estimates are different by a factor of greater than ten percent (10%) from a cost perspective, then the two (2) contractors previously appointed by Belle and JD Bank shall appoint a third duly licensed contractor who shall determine the Repair Work Cost, as set forth above. Each Party, if applicable and necessary, shall pay the fees and other costs of the contractors appointed by that Party to render said estimates, and the fees and other costs of the third contractor, if any, shall be shared equally by both Parties. Each contractor shall be required to render its estimate within fifteen (15) days of his/her respective appointments.

- b. The Repair Work Cost to be shared equally by the Parties shall be the estimate provided by the third contractor; provided, however, if the third estimate is higher than the first two estimates, the lower of the first two estimates shall govern and be deemed to be the Repair Work Cost; and, provided, further, the lowest of the three estimates shall govern and shall be deemed to be the Repair Work Cost.

All work shall be done in a manner that does not prevent or unreasonably interfere with the use of the Belle Property and/or the JD Bank Property, and in no event shall such work block all vehicular and pedestrian ingress and egress routes to the respective properties.

Upon the completion of the work, Belle shall deliver to JD Bank a written invoice for the cost of the work. JD Bank shall remit to Belle, within ten (10) days of the date of the written invoice from Belle, the amount equal to JD Bank's share (one-half of the contractor's invoice amount) of the invoice.

12. Binding Effect; Effect of Transfer of Property. Subject to and upon the terms and conditions set forth in Paragraphs 1, 2 and 11, this Agreement creates covenants running with the land and shall be binding upon and shall inure to the benefit of the parties' successors and assigns. Each property owner is only liable for maintenance, repair, indemnity, and other obligations imposed by this Agreement that accrue during its ownership, but the transfer of each party's respective property(ies) does not relieve the transferor from obligations that accrued during its ownership. References to the owner of the property refers to the owner at the time of reference (synonymous with "the owner from time to time").

13. Equal Construction. The terms of the Agreement shall not be construed in favor of or against any party.

14. Severability. If any provision of the Agreement or the application thereof to any person or circumstance is invalid or unenforceable to any extent (including with reference to time and/or geographical scope), the remainder of the Agreement and the application of such provision to other persons or circumstances shall not be affected thereby and shall be enforceable to the greatest extent permitted by law, unless such partial enforcement would be inequitable under the circumstances (in which case the parties' rights shall be equitably adjusted).

15. Entire Agreement. The Agreement constitutes the parties' entire integrated agreement with respect to the subject matter described herein, and there are no other agreements regarding that subject. The Agreement replaces and supersedes all prior written, oral, and implied agreement and understandings by and among the parties or any of them regarding that subject matter, as well as any related written, oral, or implied representations, warranties, and covenant.

16. Written Amendments. The Agreement may be altered, modified, or amended

solely by a written agreement signed by all of the parties.

17. Counterparts. This Agreement and any subsequent amendments may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

18. Louisiana Law; Lafayette Parish Venue. The Agreement shall be construed and enforced in accordance with the laws of the State of Louisiana. Any action or proceeding arising out of or related to the Agreement shall be filed and maintained solely in either the federal district court having jurisdiction over Lafayette Parish, Louisiana matters or in the state court with jurisdiction over Lafayette Parish, Louisiana matters. The parties waive the defense of *forum non conveniens* (inconvenient forum).

19. Further Assurances. The parties promptly shall execute and deliver any and all additional documents, instruments, notices, and other assurances, and shall do any and all other acts and things, reasonably necessary in connection with the performance of their respective obligations under the Agreement and to carry out the intent of the parties.

20. Section Headings. The Section titles and headings contained in the Agreement are inserted as a matter of convenience and for ease of reference only and shall be disregarded for all other purposes, including the construction or enforcement of the Agreement or any of its provisions.

21. Time of the Essence. Time is of the essence of every provision of the Agreement.

22. No Waiver. A party's failure to insist on compliance or enforcement of any provision of the Agreement shall not affect the validity or enforceability or constitute a waiver of future enforcement of that provision or of any other provision of the Agreement by that party or any other party.

23. Recitals, Exhibits, and Definitions Part of Agreement. All recitals, exhibits, and definitions are incorporated by reference and constitute part of the Agreement.

24. No Third-Party Beneficiaries. Except as expressly provided, there are no third-party beneficiaries of the Agreement.

25. Parties' Relationship; No Implied Agency. No partnership or other joint venture or profit-sharing arrangement is intended. No party is the agent of any other except to the extent, if any, provided herein.

26. Warranty of Authority. Each party represents and warrants that it has the capacity and authority to enter into the Agreement.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES]

**STATE OF LOUISIANA
PARISH OF LAFAYETTE**

THUS DONE AND PASSED, in my office at Lafayette, Louisiana on the date set forth hereinabove, in the presence of the undersigned competent witnesses, who hereunto sign their names with the appearer and me, Notary, after due reading of the whole.

WITNESSES:

Printed Name: _____

Printed Name: _____

BELLE REALY OF Lafayette, L.L.C., a
Louisiana limited liability company

By: _____
Printed Name: _____
Authorized Representative

Notary Public

Printed Name: _____

Bar Roll/Notary ID No.: _____

My commission expires: _____

**STATE OF LOUISIANA
PARISH OF LAFAYETTE**

THUS DONE AND PASSED, in my office at Lafayette, Louisiana on the date set forth hereinabove, in the presence of the undersigned competent witnesses, who hereunto sign their names with the appearer and me, Notary, after due reading of the whole.

WITNESSES:

Sarah Jolie

Printed Name:

Sarah Jolie

Brittany Reed

Printed Name:

Brittany Reed

JD Bank, a national banking association

By:

Paul E. Brummett, II

Printed Name: Paul E. Brummett, II

Authorized Representative

Karen D Nelands
Notary Public

Printed Name:

Karen D Nelands

Bar Roll/Notary ID No.: 27071

My commission expires: at death



THE SECRETARY OF THE ARMY
WASHINGTON, D. C.

Very truly yours,
Wm. H. Taft

Wm. H. Taft
Secretary of the Army



Wm. H. Taft
Secretary of the Army

Exhibits to Reciprocal Access and Parking Easement and Servitude Agreement

Exhibit A Belle Property

Exhibit A-1 Belle Servitude Area

Exhibit B JD Bank Property

Exhibit B-1 JD Bank Servitude Area